CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FOURTH SECTION

DECISION

Application no. 8651/04
by Jolanta GALUSIEWICZ
against Poland

The European Court of Human Rights (Fourth Section), sitting on 9 December 2008 as a Chamber composed of:

Nicolas Bratza, *President,*
Lech Garlicki,
Giovanni Bonello,
Ljiljana Mijović,
David Thór Björgvinsson,
Ledi Bianku,
Mihai Poalelungi, *judges,*

and Lawrence Early, *Section Registrar*,

Having regard to the above application lodged on 23 February 2004,

Having regard to the declaration submitted by the respondent Government on 19 March 2008 requesting the Court to strike the application out of the list of cases and the applicant's reply to that declaration,

Having deliberated, decides as follows:

THE FACTS

The applicant, Ms Jolanta Galusiewicz, is a Polish national who was born in 1948 and lives in Rumia. The Polish Government ("the Government") were represented by their Agent, Mr J. Wołąsiewicz of the Ministry of Foreign Affairs.

A. The circumstances of the case

The facts of the case, as submitted by the parties, may be summarised as follows.

1. Proceedings instituted by a housing co-operative against the applicant

On 5 September 1996 a housing co-operative lodged a claim for payment against the applicant with the Sopot District Court *(Sąd Rejonowy)*.

On 29 May 2002 the Sopot District Court gave judgment and ordered the applicant to pay the plaintiff a certain amount of money.

On an unspecified date the applicant appealed against this judgment.

On 22 January 2003 the Gdańsk Regional Court *(Sąd Okręgowy)* quashed the first-instance judgment and remitted the case.

On 28 October 2004 the Sopot District Court again gave judgment.

On an unspecified date the applicant lodged an appeal.

On 24 March 2004 the Gdańsk Regional Court dismissed the appeal as ill-founded.

2. The applicant's complaint under the 2004 Act in relation to the above proceedings

On 23 February 2004 the applicant lodged her application with the Strasbourg Court.

On 15 November 2004 the applicant lodged a complaint with the Gdańsk Regional Court under section 18 of the Law of 17 June 2004 on complaints about a breach of the right to a trial within a reasonable time (*Ustawa o skardze na naruszenie prawa strony do rozpoznania sprawy w postępowaniu sądowym bez nieuzasadnionej zwłoki*) ("the 2004 Act"). She informed the Regional Court that she had lodged an application with the Strasbourg Court. She stated clearly that the basis of her complaint was section 18 of the 2004 Act and requested that the court award her 10,000 Polish zlotys (PLN) in just satisfaction.

On 30 December 2004 the Gdańsk Regional Court rejected her claim, finding that "section 5 of the 2004 Act was not applicable in her case".

3. Proceedings instituted by the applicant against the housing co-operative

On 8 December 2000 an extraordinary meeting of members of the housing co-operative of which the applicant was a member adopted a resolution and withdrew the applicant's membership of the co-operative.

On 2 January 2001 the applicant lodged a claim with the Gdańsk Regional Court seeking annulment of that resolution.

On 6 March 2001 the Gdańsk Regional Court stayed the proceedings pending the outcome of another set of proceedings between the same parties before the Gdańsk District Court.

The applicant did not appeal against that decision.

On 14 August 2001 the applicant requested that the court resume the proceedings.

On 30 August 2001 the Gdańsk Regional Court dismissed her request. The applicant appealed and, on 14 December 2001, the Gdańsk Court of Appeal dismissed the appeal.

On 12 February 2004 the applicant again requested that the court resume the proceedings.

On 13 February 2004 the Gdańsk Regional Court granted her request.

On 10 August 2004, having held four hearings, the Gdańsk Regional Court gave judgment and granted the applicant's claim.

On 29 September 2004 the defendant lodged an appeal.

On 4 October 2004 the Gdańsk Regional Court dismissed her appeal, apparently on procedural grounds (the applicant failed to produce a copy of the court's decision of 4 October 2004).

4. The applicant's complaint under the 2004 Act concerning the proceedings against the housing co-operative

On 17 November 2004 the applicant lodged a complaint with the Gdańsk Court of Appeal under section 18 of the 2004 Act. She sought a declaration that the proceedings before the Regional Court had been unreasonably lengthy and just satisfaction in the amount of PLN 10,000.

On 14 December 2004 the Gdańsk Court of Appeal gave a decision, acknowledged the unreasonable length of the main proceedings (thirty-five months of inactivity on the part of the Regional Court) and awarded the applicant PLN 5,000 (approx. 1,320 euros) in just satisfaction.

B. Relevant domestic law

The relevant domestic law and practice concerning remedies for the excessive length of judicial proceedings are stated in the Court's decisions in *Charzyński v. Poland* (no. 15212/03 (dec.), §§ 12-23, ECHR 2005-V) and *Ratajczyk v. Poland* (no. 11215/02 (dec.), ECHR 2005-VIII), and its judgment in *Krasuski v. Poland* (no. 61444/00, §§ 34-46, ECHR 2005-V).

COMPLAINTS

1. The applicant complained under Article 6 § 1 of the Convention of the unreasonable length of the two sets of proceedings in which she had been involved.

2. The Court raised of its own motion a complaint under Article 13 of the Convention concerning the issue whether the applicant had had an effective domestic remedy against the excessive length of the proceedings instituted against her by the co-operative.

3. The applicant also raised complaints under Article 11 of the Convention alleging that during the proceedings for annulment of the housing co-operative's resolution she had been deprived of her rights as a member of the co-operative.

4. She further complained, invoking Article 3 of Protocol No. 1, that she had had to undertake "special measures" in order to be able to vote in the parliamentary elections in 1998.

THE LAW

A. The length of the proceedings and the lack of an effective remedy in this respect

The applicant complained about the length of the proceedings instituted against her by the housing co-operative. She relied on Article 6 § 1 of the Convention which, in so far as relevant, provides:

Article 6 § 1

> "In the determination of his civil rights and obligations ..., everyone is entitled to a ... hearing within a reasonable time by [a] ... tribunal..."

The Court raised of its own motion a complaint concerning the lack of an effective domestic remedy under Article 13 of the Convention, which provides:

Article 13

> "Everyone whose rights and freedoms as set forth in [the] Convention are violated shall have an effective remedy before a national authority notwithstanding that the violation has been committed by persons acting in an official capacity."

By letter dated 19 March 2008 the Government informed the Court that they proposed to make a unilateral declaration with a view to resolving the issue raised by this part of the application. They further requested the Court to strike out the application in accordance with Article 37 of the Convention.

The declaration provided as follows:

> "... the Government hereby wish to express – by way of a unilateral declaration – their acknowledgement of the unreasonable duration of the domestic proceedings in which the applicant was involved. At the same time, the Government admit that in the particular circumstances of the applicant's case, the applicant's complaint about the length of the proceedings has not been redressed at the domestic level as required by Article 13 of the Convention and the applicant can claim to be a victim of violation of her right to have her case examined in the "reasonable time" in the meaning of Article 6 § 1 of the Convention.
>
> In these circumstances and having regard to the particular circumstances of the case, the Government declare that they offer to pay to the applicant the amount of PLN 15,000 which they consider to be reasonable in the light of the Court's case-law.
>
> The sum referred to above, which is to cover any pecuniary and non-pecuniary damage, as well as costs and expenses, will be free from any taxes that may be applicable. It will be payable within three months from the date of notification of the decision taken by the Court pursuant to Article 37 § 1 of the European Convention for the Protection of Human Rights. In the event of failure to pay this sum within the three-month period, the Government undertake to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.
>
> The Government would respectfully suggest that the above declaration be accepted by the Court as 'any other reason' justifying the striking out of the case of the Court's list of cases, as referred to in Article 37 § 1 (c) of the Convention.
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> ... as transpires from the Government's unilateral declaration, the government accepted paying to the applicant as just satisfaction the amount of PLN 15,000 in the event of the Court's striking the case out of its list
>
> ..."

In a letter of 5 May 2008 the applicant expressed the view that the sum mentioned in the Government's declaration was unacceptably low.

The Court reiterates that, in accordance with Article 37 of the Convention, it may at any stage of the proceedings decide to strike an application out of its list of cases where the circumstances lead to one of the conclusions specified under (a), (b) or (c) of paragraph 1 of that Article. Article 37 § 1 (c) enables the Court, in particular, to strike a case out of its list if:

> "for any other reason established by the Court, it is no longer justified to continue the examination of the application".

It also reiterates that in certain circumstances it may strike out an application under Article 37 § 1(c) on the basis of a unilateral declaration by a respondent Government even if the applicant wishes the examination of the case to be continued.

To this end, the Court will examine carefully the declaration in the light of the principles emerging from its case-law, in particular the *Tahsin Acar* judgment (see *Tahsin Acar v. Turkey*, [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI; see also *WAZA Spółka z o.o. v. Poland* (dec.), no. 11602/02, 26 June 2007, and *Sulwińska v. Poland* (dec.), no. 28953/03).

The Court has established in a number of cases, including cases brought against Poland, its practice regarding complaints concerning the violation of the right to a hearing within a reasonable time and the lack of an effective remedy capable of providing redress for a breach of that right (see, for example, *Frydlender v. France* [GC], no. 30979/96, § 43, ECHR 2000-VII; *Cocchiarella v. Italy* [GC], no. 64886/01, §§ 69-98, ECHR 2006-....; *Majewski v. Poland*, no. 52690/99, 11 October 2005; *Wende and Kukówka v. Poland*, no. 56026/00, 10 May 2007; *Kudła v. Poland* [GC], no. 30210/96, ECHR 2000-IX; and *Charzyński v. Poland* (dec.), no. 15212/03, ECHR 2005- ...).

Having regard to the nature of the admissions contained in the Government's declaration, as well as the amount of compensation proposed – which is consistent with the amounts awarded in similar cases – the Court considers that it is no longer justified to continue the examination of this part of the application (Article 37 § 1(c)).

Moreover, in the light of the above considerations, and in particular given the clear and extensive case-law on the topic, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of this part of the application (Article 37 § 1 *in fine*).

Accordingly, it should be struck out of the list.

B. Remaining complaints

The applicant further complained of the excessive length of the civil proceedings for annulment of the housing co-operative's resolution.

The Court notes that in this case the applicant made use of the remedy provided for by the 2004 Act and that she was awarded just satisfaction. The amount awarded corresponds to approximately 50% of what the Court would be likely to have awarded to the applicant at the relevant time and in accordance with its practice. In this connection and on the basis established in the Court's case-law, the Court considers that the applicant can no longer claim to be a victim of a violation of her Convention rights (see *Cocchiarella*, cited above, §§ 69-107, and *Scordino v. Italy (no. 1)* [GC], no. 36813/97, §§ 178-213, ECHR 2006 - ...).

It follows that this part of the application is manifestly ill-founded and must be declared inadmissible in accordance with Article 35 §§ 3 and 4 of the Convention.

The applicant further complained under Article 11 of the Convention that during the proceedings for annulment of the housing co-operative's resolution she had been deprived of her rights as a member of the cooperative. She further complained under Article 3 of Protocol No. 1 that she had had to take "special measures" in order to be able to vote in the parliamentary elections in 1998.

The Court has examined the remainder of the complaints as submitted by the applicant. However, having regard to all the material in its possession, and in so far as the matters complained of are within its competence, the Court finds that the applicant has failed to substantiate her complaints. It follows that this part of the application must be rejected in accordance with Article 35 §§ 3 and 4 of the Convention.

For these reasons, the Court unanimously

Takes note of the terms of the respondent Government's declaration in respect of the complaints under Articles 6 § 1 and 13 of the Convention and of the arrangements for ensuring compliance with the undertakings referred to therein;

Decides to strike the application out of its list of cases in so far as it relates to the above complaints, in accordance with Article 37 § 1 (c) of the Convention;

Declares the remainder of the application inadmissible.

Lawrence Early
Registrar

Nicolas Bratza
President